

10. **Strict settlement of chattels.**—Should a testator devise his real estate in strict settlement, and then bequeath his personal estate to *such tenant in tail* as should first attain twenty-one, then, if the tenant in tail at the testator's death be not adult, the event might not occur for a century, and the trust would be void (*b*). But should a testator bequeath his personal estate upon such trusts as would correspond to the limitations of his real estate, with a proviso that it should not vest absolutely in any tenant in tail unless he attained twenty-one, the trust would be good, for as personal estate cannot descend, the testator must by a tenant in tail have meant a tenant in tail by *purchase* (*c*).

11. **Trust for indemnity.**—The question often arises in practice whether the trust of one estate to *indemnify* another estate against a perpetual outgoing be not void for perpetuity, but it has been held in Ireland that such a trust is good, and that the Statute of Limitations does not apply to it (*d*).

12. **Restriction of alienation.**—Trusts cannot be created with a proviso that the interest of the *cestui que trust* shall not be *alienated* (*e*), or shall not be made subject to the claims of *creditors* (*f*).¹ And if it can only be ascertained that the

ment, 10 L. R. Eq. 564; [*Re Ridley*, 11 Ch. D. 645; *Herbert v. Webster*, 15 Ch. D. 610; *Cooper v. Laroche*, 17 Ch. D. 368.]

(*b*) *Gosling v. Gosling*, 1 De G. J. & S. 17, *per* L. C.

(*c*) *Gosling v. Gosling*, 1 De G. J. & S. 1.

(*d*) *Massy v. O'Dell*, 10 Ir. Ch. Rep. 1.

(*e*) *Snowdon v. Dales*, 6 Sim. 524; *Green v. Spicer*, 1 R. & M. 395;

Graves v. Dolphin, 1 Sim. 66; *Brandon v. Robinson*, 18 Ves. 429; *Ware v. Cann*, 10 B. & Cr. 433; *Bradley v. Peixoto*, 3 Ves. 324; *Hood v. Oglander*, 34 Beav. 513; *Re Jones's Will*, W. N. 1870, p. 14; [*Hunt-Foulston v. Furber*, 3 Ch. D. 285; *Re Wolstenholme*, 29 W. R. 414; 43 L. T. N. S. 752.]

(*f*) *Graves v. Dolphin*, *Snowdon v. Dales*, *Brandon v. Robinson*, *ubi supra*; *Bird v. Johnson*, 18 Jur. 976.

¹ *Restraint of Alienation.*—A trust may not be created in which the equitable estate is not to be alienated or charged with the debts of the *cestui que trust*; *Blackstone Bank v. Davis*, 21 Pick. 43; *Daniels v. Eldredge*, 125 Mass. 356; *Sparhawk v. Cloon*, 125 Mass. 263; that the equitable estate is susceptible of alienation, and is liable to the debts of the *cestui que trust*, has been held in some cases in America; *Williams v. Thorn*, 70 N. Y. 270; *McIlvaine v. Smith*, 42 Mo. 45; *Easterly v. Keney*, 36 Conn. 18; *Tillinghast v. Bradford*, 5 R. I. 205; *Mebane v. Mebane*, 4 Ired. Eq. 131; *Smith v. Moore*, 37 Ala. 327; while in others the power of alienation is not regarded as a necessary